MINUTES OF THE MEETING OF OCTOBER 2, 2OO3

The meeting of the Pine Valley Special Service District Board Members was held on Thursday, October 2, 2003 to accommodate special guest, Mr. Jan T. Furner, Utah Association of Special Service Districts Executive Director.

Chairman, Ron Snow, called the meeting to order at 6:00 P.M. and led everyone in the Pledge of Allegiance to the Flag.

Board Members present: Ron Snow, Chairman; Vicki Frei, Vice Chairman; and Lee Carlile. Absent: Victor Christensen and Ryon Gardner. Also present: Dall Winn, Fire Chief; and Julie M. Cropper, Administrative Secretary/Treasurer

Public present: Fred Pendelton of the Pine Valley Historical Advisory Committee; Steve Robinson, Washington County Planning & Zoning Commission; George Cropper, Beverly Udell, Gae Robinson, Layne Frei, and Mr. Jan T. Furner, Utah Association of Special Service Districts.

Minutes of the meeting held on September 3, 2003 were read and accepted on a motion by Vicki Frei and second by Lee Carlile.

COMMITTEE REPORTS

Chairman, Ron Snow said that he was not aware of any pending building permit applications, but noted that there are several homes going up and we don't know whether they have been considered by the Board or not. Vicki mentioned that plans need to have a real street addresses to help keep track of them. It was noted that the Board may be missing applications from the County and it was agreed that Ron and Julie will check with the Washington County Building Department on this.

Ron said he had talked with Washington County, and they didn't seem to know much about appointed versus elected board members. Julie had contacted Jan Furner who agreed to be here and clarify the regulations on this.

Vicki mentioned that the OHV signs were up, but there were none on the "circle" area in upper Lloyd Canyon. Steve said he would bring the need for more signs up at the upcoming County Planning and Zoning Commission Meeting. Board members expressed great concern that the signs "tell everyone that its OK to ride in Pine Valley".

FIRE DEPARTMENT

Fire Chief Dall Wino reported on the following:

- we have received the balance of equipment. from the State Grant which include hand held and a base station radios. We have reprogrammed radios so that we can activate the pagers through the base station during a power outage. We a'so got some new wildland gear and all volunteers are equipped with the basic safety gear.

- he is working with Julie to set up a new accountability system to better track expenditures and keep grant money separate ITom regular Service District funds.
- regular monthly training will be Oct. 9 at 6:00 pm and Oct 11 at 9:00 am.
- we have put in for reimbursement on time and equipment costs for National Forest fires which will be about $900. Technically this money belongs to the volunteers and we will be deciding what to do with it.

Gae Robinson, EMT, mentioned that we are getting a meter to test blood oxygen which Enterprise, Utah has donated to us, but we need an attachment which would cost about $50 or $60. A motion was made and seconded to get this attachment and was passed.

Ron gave Dall some report forms pertaining to Five County AOG Grants. This was discussed, but seemed to be different than our ongoing grants. Dall will follow through on this.

Jan Furner was introduced and asked to discuss the rules relative to electing or appointing Service District Board members. Jan said that this board is quasi-independent, but the County Commission provides ongoing oversight. He said that members can be either appointed or elected and passed out a statute that defines the processes ofappointment or election. The option whether to appoint or elect is up to the County Commission. This Service District was created in 1978 and it was set up to have an appointed board at that time. To change this process would require a:I. public hearing and approval of the County Commission.

The new regulation on "resort communities" was discussed. This regulation provides that if at least 90% of property owners ate not qualified electors, a board may include members who are not qualified electors. It was felt that in Pine Valley, probably 90% of owners of property are not yearlong residents and thus not qualified electors, so that under this rule, the board could include non qualified electors.

There was considerable discussion by the board and public present that included the following points of view:

- several members of the Board and public present at the last meeting favored an elected Board.
- there are three Board member terms expiring in December, but it is too late to consider an elected board during this election cycle.
- under the present system, the people have little influence with the County Commission since they can control what they want by controlling who is on the Board.
- whether they are elected or not, it would not substantially change the amount of influence with the County.
- if members were elected, only qualified electors could vote and other property owners would have little voice.

There was some discussion about the Board's authorities. The Pine Valley Special Service District Charter provides for only fire protection, sewer and water, but we seemto be working in other areas includingATV, road maintenance, and Pine Valley Historical Advisory Committee. It was mentioned that the Board had been told that they had a broad authority to consider different issues. Those present suggested that we should either amend and expand that Charter or refer issues not specifically authorized to the Washington County Commission.

It was also mentioned that some Fire Departments collect operating funds through a property tax mill levy and funds are collected through the regular Washington County tax rolls.

NEW BUSINESS

-NONE-

PINE VALLEY HISTORICAL ADVISORY COMMITTEE

Fred Pendelton reported that the Pine Valley Plan has been reviewed and approved by Washington County Planning & Zoning. A Public Hearing will be held on October 14, at 1:30 p.m. during the regular Washington County Commission meeting. The Historical Advisory Committee meeting for this month has been postponed.

WASHINGTON COUNTY PLANNING & ZONING REPORT

Steve Robinson mentioned a proposed water quality protection ordinance that had been proposed to the Washington County Planning and Zoning Commission. He said that this ordinance as proposed was far reaching and had the potential to seriously control ongoing land uses on private property including agriculture and other activities in Pine Valley and the rest of Washington County. It would give the Utah State Department of Environmental Quality broad authority to control land use activities. The proposal had been tabled by the Planning and Zoning Commission, and comments can be made to them.

SET DATE FOR THE NEXT MEETING

Wednesday, November 5, 2003

ADJOURNMENT

There being no further business, Lee moved and Vicki seconded a motion to adjourn. The motion carried and the meeting adjourned at 7:10 pm.

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